

MEMORANDUM OF UNDERSTANDING

This Memorandum of Understanding (“MOU”) is entered into and effective as of this ____ day of February 2024, by and between the Board of Education of the Brecksville-Broadview Heights City School District (“Board” or “District”) and the Brecksville-Broadview Heights Education Association (“Association”).

WHEREAS, the Board and the Association are parties to a Collective Bargaining Agreement (“Contract”) in effect for the period of July 1, 2021, through June 30, 2024, and

WHEREAS, the Contract does not contain any provision for any retirement incentive upon separation of employment; and

WHEREAS, circumstances have arisen providing the Board and the Association with the desire to incentivize interested eligible bargaining unit members pondering retirement on a one-time basis.

IT IS NOW THEREFORE AGREED as follows:

1. The Board shall offer a one-time retirement incentive to eligible teachers, contingent upon nine (9) voluntary teacher resignations for retirement purposes. If and only if nine (9) irrevocable teacher resignation for retirement purposes are reached by March 18, 2024 (i.e., such eligible resigning teachers provide to the Human Resources office their written notice of resignation for retirement purposes by March 18, 2024, and such teachers must actually resign, at the end of the 2023-2024 school year), the retirement incentive shall be as follows:
 - a. Teachers eligible for the retirement incentive shall include teachers who have reached step 20 or higher on the teacher salary schedule, as defined in their most recent letter of assignment.
 - b. For those teachers eligible for the incentive, notification to the Board of intent to participate must be received on or before March 18, 2024, which must include an irrevocable letter of resignation, effective between May 31, 2024, and July 1, 2024. (The teacher must complete the 2023-2024 school year to be eligible.) Failure to provide such notification shall be deemed a waiver of the employee’s ability to receive the incentive provided by this Memorandum of Understanding.
 - c. Eligible teachers who provide appropriate notification as set forth above shall receive a lump sum payment of the product of one thousand dollars (\$1,000) multiplied by every year of service as a full-time teacher in the District (must have earned a year of service credit through STRS for a year to count as a year of service, and have worked full-time hours), payable on or before January 25, 2025.¹ This lump sum payment eligibility also includes the retirement of part-time teachers who have full years of service (must have earned a year of service credit through STRS for a year to count as a year of service);

¹ The parties agree that any eligible teachers (per the terms of this MOU) who have previously provided the Board with notice of full STRS retirement and resignation for that purpose for the end of the 2023-2024 contract year would be eligible for the payment set forth herein, but will not be eligible to revoke their retirement in accordance with paragraph 1(e). The parties further agree that for a teacher who has not reached step 20 who previously provided the Board with notice of full STRS retirement and resignation for that purpose for the end of the 2023-2024 contract year is eligible for up to ten (10) years of service payment based on the terms of Paragraph 1.c. above.

however, the incentive outlined in this Paragraph 1.c. shall be pro-rated for fewer than full-time contract hours. If applicable, said payments shall be subject to all applicable Medicare, federal, state and local taxes and withholdings. Such payment shall be made into a 401(a) Plan or 403(b) Plan.

- d. In the event of death prior to the final scheduled payment, benefits will continue to be paid to the designated beneficiary, or to the estate of the deceased if no beneficiary is named or alive at the time of an employee's death.
 - e. If a minimum of nine (9) eligible teachers do not resign for retirement purposes as described/defined above by March 18, 2024, then this retirement incentive does not apply and becomes void. If the minimum of nine (9) eligible teacher resignations is not reached, then eligible teachers who submitted their resignation for retirement purposes between the Execution Date of this MOU by both parties, and March 18, 2024, may revoke their retirement on or before March 30, 2024, because such Association members will not be eligible for this retirement incentive because the minimum number of nine (9) retirees was not reached.
 - f. Any eligible teacher(s) who receives the retirement incentive pursuant to this MOU shall elect to receive a severance payment, to the extent they are eligible under Section 34 of the Contract, thereby eliminating all sick leave credit accrued by the employee(s).
2. Eligibility for this retirement incentive plan shall automatically terminate on March 19, 2024, and shall not carry over into successor years or agreements. Any further retirement incentives shall be negotiated between the parties.
 3. The Board, in its sole discretion, reserves the right to re-employ participating employees after his/her resignation/retirement from his/her employment with the Board, based on operational and educational needs of the District. All parties acknowledge and agree that this decision shall be in the sole discretion of the Board and any re-employment shall be in accordance with the Contract and/or Ohio law.
 4. There can be no exceptions or options, including no future deferral of benefits nor acceleration of benefits, to alter the formulas, calculations, or method of benefit payments, or timing or number of payments, as explained herein.
 5. The foregoing shall establish neither precedent nor past practice with respect to any further matter.

BRECKSVILLE-BROADVIEW
HEIGHTS CITY SCHOOL DISTRICT
BOARD OF EDUCATION

By: _____

Title: _____

Date: _____

BRECKSVILLE-BROADVIEW
HEIGHTS EDUCATION ASSOCIATION

By: _____

Title: _____

Date: _____